



CHAPTER 49.

An Act to amend the law with respect to customs
in the Isle of Man. [22nd August 1940.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1.—(1) In lieu of the duties imposed on ale and beer by section eight of the second Act of 1932, and section four of the Act of 1936, there shall, until the first day of August, nineteen hundred and forty-one, be payable, on the removal or importation of ale and beer into the Isle of Man, the following duties of customs—

Ale and
beer.
22 & 23
Geo. 5. c. 41.
26 Geo. 5. &
1 Edw. 8.
c. 45.

- (a) in the case of all ale and beer, a duty at the rate of four pounds fourteen shillings for every thirty-six gallons where the worts were before fermentation of a specific gravity of one thousand and fifty-five degrees, with a proportionate increase or decrease according to the specific gravity of the worts thereof before fermentation; and
- (b) in the case of ale and beer not being an Empire product, in addition to the duty imposed by paragraph (a) of this subsection, a duty at the rate of one pound for every thirty-six gallons.

(2) This section shall be deemed to have come into operation on the twenty-seventh day of April, nineteen hundred and forty.

Spirits.

20 & 21

Geo. 5. c. 42.

2.—(1) During the period beginning with the eleventh day of October, nineteen hundred and thirty-nine, and ending with the twenty-sixth day of April, nineteen hundred and forty, section two of the Act of 1930 (which imposes duties on spirits) shall be deemed to have had effect as if—

(a) in paragraph (a) of subsection (1) thereof the words “four pounds, two shillings and sixpence” had been substituted for the words “three pounds, twelve shillings and sixpence”; and

(b) the rates of duty set out in Part I of the First Schedule to this Act had been substituted for the rates set out in Part I of the Schedule to that Act;

and the following provisions of this section shall be deemed to have come into operation on the twenty-seventh day of April, nineteen hundred and forty.

(2) In lieu of the duties imposed on spirits by the said section two, there shall, until the first day of August, nineteen hundred and forty-one, be payable, on the removal or importation of spirits into the Isle of Man, the following duties of customs—

(a) in the case of spirits of any description, being Empire products produced in Great Britain or Northern Ireland, a duty of four pounds, seventeen shillings and sixpence for every gallon computed at proof, whether in cask or bottle;

(b) in the case of spirits of the descriptions specified in the first column of Part II of the First Schedule to this Act, being Empire products produced elsewhere than in Great Britain or Northern Ireland, duties at the preferential rates respectively specified in the second column of Part II of that Schedule;

(c) in the case of spirits of the descriptions so specified, not being Empire products, duties at the full rates respectively specified in the third column of Part II of that Schedule;

(d) in the case of spirits of the descriptions specified in the first column of Part III of that Schedule—

(i) where the spirits have been warehoused for a period of less than three but not less than two years, duties at the rates respectively specified in the second column of Part III of that Schedule; and

(ii) where the spirits have not been warehoused or have been warehoused for a period of less than two years, duties at the rates respectively specified in the third column of Part III of that Schedule;

in addition to the duty payable under the foregoing provisions of this subsection:

Provided that no duty shall be payable under this subsection on the removal to the Isle of Man of spirits methylated in Great Britain or Northern Ireland.

3.—(1) During the period beginning with the eleventh day of October, nineteen hundred and thirty-nine, and ending with the twenty-sixth day of July, nineteen hundred and forty, section one of the Act of 1927 (which, as amended by section eight of the Act of 1933, imposes duties on wines) shall be deemed to have had effect as if—

Wines.

17 & 18

Geo. 5. c. 20.

23 & 24

Geo. 5. c. 40.

(a) the rates of duty set out in Part I and Part II of the Second Schedule to this Act had been respectively substituted for the rates of duty set out in Part I and Part II of the First Schedule to the Act of 1927; and

(b) the said section eight had not been in force; and the following provisions of this section shall be deemed to have come into operation on the twenty-seventh day of July, nineteen hundred and forty.

(2) In lieu of the duties imposed on wines by the said section one, there shall, until the first day of August, nineteen hundred and forty-one, be payable, on the removal or importation of wines into the Isle of Man, the following duties of customs—

(a) in the case of wines of the descriptions specified in the first column of Part I of the Third Schedule to this Act, not being Empire products, duties at the rates respectively specified

in the second column of that Part of that Schedule; and

- (b) in the case of wines of the descriptions specified in the first column of Part II of the said Schedule, being Empire products, duties at the rates respectively specified in the second column of that Part of that Schedule:

2 & 3 Geo. 6.
c. 109. Provided that if, by virtue of the proviso to section three of the Finance (No. 2) Act, 1939, the preferential rate chargeable under that section (as amended by any subsequent enactment) on wine not exceeding twenty-seven degrees of proof spirit is increased, either generally or as respects wine produced or manufactured in any particular country, the Governor may from time to time make such orders as may be necessary to provide that this subsection has the same effect as respects wine removed or imported into the Isle of Man as the said section three has for the time being as respects wine imported into Great Britain and Northern Ireland.

53 & 54 Vict.
c. 8.

(3) Subsection (2) of section eight of the Customs and Inland Revenue Act, 1890 (which provides that wine rendered sparkling in warehouse is to be deemed sparkling wine for the purposes of certain duties imposed on sparkling wine) shall apply for the purpose of the duty imposed on sparkling wine by this section as it applied for the purpose of the duty mentioned in that subsection.

(4) In this section the expression "wine" includes the lees of wine, but does not include wine made in Great Britain or Northern Ireland.

Sweets.

20 & 21

Geo. 5. c. 1.

4.—(1) During the period beginning with the eleventh day of October, nineteen hundred and thirty-nine, and ending with the twenty-sixth day of July, nineteen hundred and forty, section two of the Act of 1929 and section three of the Act of 1933 (which impose duties on sweets) shall be deemed to have had effect as if—

- (a) nine shillings had been substituted for seven shillings as the rate of duty per gallon payable in the case of sparkling sweets; and
- (b) three shillings had been substituted for one shilling as the rate of duty per gallon payable in the case of other sweets;

and the following provisions of this section shall be deemed to have come into operation on the twenty-seventh day of July, nineteen hundred and forty.

(2) In lieu of the duties imposed on sweets by the said section two, as amended by the said section three, there shall, until the first day of August, nineteen hundred and forty-one, be payable, on the removal or importation of sweets into the Isle of Man, the following duties of customs—

- (a) in the case of sparkling sweets, a duty at the rate of eleven shillings for every gallon; and
- (b) in the case of other sweets, a duty at the rate of five shillings for every gallon.

(3) In this section, the expression “sweets” means any liquor which is made in Great Britain or Northern Ireland from fruit and sugar, or from fruit or sugar mixed with any other material, and which has undergone a process of fermentation in the manufacture thereof, and includes British wines, made wines, mead and metheglin.

5.—(1) Section one of the Act of 1939 (which imposes duties on tobacco) shall be deemed to have had effect—

Tobacco.
2 & 3 Geo. 6.
c. 53.

- (a) during the period beginning with the eleventh day of October, nineteen hundred and thirty-nine, and ending with the twenty-sixth day of April, nineteen hundred and forty, as if the rates of duty set out in Part I of the Fourth Schedule to this Act had been substituted for the rates of duty set out in the First Schedule to that Act; and
- (b) during the period beginning with the twenty-seventh day of April, nineteen hundred and forty, and ending with the twenty-sixth day of July, nineteen hundred and forty, as if the rates of duty set out in Part II of the said Fourth Schedule had been substituted for the rates of duty set out in the said First Schedule;

and the following provisions of this section shall be deemed to have come into operation on the twenty-seventh day of July, nineteen hundred and forty.

(2) In lieu of the duties imposed by the said section one, there shall, until the first day of August, nineteen hundred and forty-one, be payable, on the removal or importation into the Isle of Man of tobacco of the descriptions specified in the first column of Part III of the Fourth Schedule to this Act, the following duties of customs—

- (a) in the case of tobacco not being an Empire product, duties at the rates respectively specified in the second column of Part III of that Schedule; and
- (b) in the case of tobacco being an Empire product, duties at the rates respectively specified in the third column of Part III of that Schedule.

(3) In the said Schedule the expression “stripped tobacco” means tobacco of which the leaf is not complete by reason of the removal of the stalk or midrib or of some portion thereof, but tobacco shall not be deemed to be stripped tobacco solely by reason of its having been subjected to such process of butting as the Commissioners may allow.

Matches.

6.—(1) In lieu of the duties imposed on matches by section one of the Act of 1933, there shall, until the first day of August, nineteen hundred and forty-one, be payable, on the removal or importation of matches into the Isle of Man, duties of customs at the rates specified in the Fifth Schedule to this Act.

(2) For the purposes of the duties under this section, a match which has more than one point of ignition shall be reckoned as so many matches as there are points of ignition.

(3) The Commissioners may make regulations with respect to the collection of the duties under this section, and may for that purpose apply, with the necessary modifications, to matches removed or imported into the Isle of Man, any enactments applicable to duties on matches imported into Great Britain and Northern Ireland.

(4) This section shall be deemed to have come into operation on the twenty-seventh day of April, nineteen hundred and forty.

7.—(1) In lieu of the duties imposed on mechanical lighters and component parts thereof by section two of the Act of 1933, there shall be payable, on the removal or importation into the Isle of Man of any article, being a mechanical lighter or component part of a mechanical lighter other than a flint, the following duties of customs—

Mechanical
lighters.

- (a) in the case of any such article manufactured in Great Britain or Northern Ireland, a duty of two shillings and sixpence; and
- (b) in the case of any other such article, a duty of three shillings and sixpence.

(2) The Commissioners may, subject to such conditions (if any) as they think fit to impose, exempt from the duties under this section any mechanical lighters which are shown to their satisfaction to be intended to be used as parts of miners' lamps, and the component parts of any such mechanical lighters.

(3) In this section, the expression "mechanical lighter" means any mechanical or chemical contrivance which is portable and is intended for producing a spark or flame, whether by itself or when brought into contact with gas.

(4) The Commissioners may make regulations with respect to the collection of the duties under this section and may for that purpose apply, with the necessary modifications, to mechanical lighters removed or imported into the Isle of Man any enactments applicable to duties on mechanical lighters imported into Great Britain and Northern Ireland.

(5) This section shall be deemed to have come into operation on the twenty-seventh day of April, nineteen hundred and forty.

8.—(1) Subject to the provisions of this section, the duties of customs imposed on goods removed or imported into the Isle of Man, being goods of the descriptions set out in the first column of the following table, by the respective enactments set out in the second column of

Annual
duties (con-
tinuation).

that table, shall continue to be payable until the first day of August, nineteen hundred and forty-one :—

TABLE.

Description of goods.	Enactment imposing duty.
14 & 15 Geo. 5. c. 24. 15 & 16 Geo. 5. c. 56. Cocoa - - - - - Hops and extracts, essences and other similar preparations (other than hop oil) made from hops. Hop oil - - - - - Silk and artificial silk and articles made wholly or in part from silk or artificial silk.	Section 4 of the Act of 1924. Section 5 of the Act of 1925. Section 3 of the Act of 1929. Section 7 of the Act of 1925, as amended by section 8 of the Act of 1926, section 9 of the second Act of 1932, section 4 of the Act of 1933, section 3 of the Act of 1936, and section 3 of the Act of 1937. Section 5 of the Act of 1938.
16 & 17 Geo. 5. c. 27. 1 Edw. 8. & 1 Geo. 6. c. 64. 1 & 2 Geo. 6. c. 68. Tea - - - - -	

(2) Where any enactment set out in the second column of the foregoing table confers power on the Governor to make orders varying or repealing the duties of customs payable on the goods referred to in that enactment or imposing a new duty on such goods, the provisions of that enactment relating to the said power shall continue in force until the said first day of August, nineteen hundred and forty-one, and the foregoing provisions of this section shall have effect subject to any orders made in pursuance of any such power (whether before or after the commencement of this Act) which are for the time being in force.

(3) This section shall be deemed to have come into operation on the first day of August, nineteen hundred and forty.

Short title,
interpretation and
repeal.

9.—(1) This Act may be cited as the *Isle of Man (Customs) Act, 1940.*

9 & 10
Geo. 5. c. 74.

(2) In this Act the expression “Empire product” has the same meaning as in section five of the Act of 1919, as amended by any subsequent enactment.

(3) The enactments set out in the Sixth Schedule to this Act are hereby repealed to the extent mentioned in the third column of that Schedule—

- (a) in the case of the enactment set out in Part I of that Schedule, as from the eleventh day of October, nineteen hundred and thirty-nine;
- (b) in the case of the enactments set out in Part II of that Schedule, as from the twenty-seventh day of April, nineteen hundred and forty; and
- (c) in the case of the enactments set out in Part III of that Schedule, as from the twenty-seventh day of July, nineteen hundred and forty.

SCHEDULES.

Section 2.

FIRST SCHEDULE.

RATES OF DUTIES ON SPIRITS.

PART I.

ORDINARY RATES PAYABLE ON SPIRITS (NOT PRODUCED IN GREAT BRITAIN OR NORTHERN IRELAND) FROM 11TH OCTOBER, 1939, TO 26TH APRIL, 1940.

1. Description of Spirits.	2.		3.	
	Preferential Rates.		Full Rates.	
	In Cask.	In Bottle.	In Cask.	In Bottle.
For every gallon computed at proof of—	£ s. d.	£ s. d.	£ s. d.	£ s. d.
Brandy or rum - -	4 2 10	4 3 10	4 5 4	4 6 4
Imitation rum or geneva	4 2 11	4 3 11	4 5 5	4 6 5
Unsweetened spirits other than those already enumerated - -	4 2 11	4 2 11	4 5 5	4 5 5
For every gallon of perfumed spirits - -	6 12 0	6 13 0	6 16 0	6 17 0
For every gallon of liqueurs, cordials, mixtures, and other preparations in bottle entered in such manner as to indicate that the strength is not to be tested - -	—	5 12 7	—	5 15 11
For every gallon computed at proof of spirits of any description not heretofore mentioned, including naphtha and methylic alcohol purified so as to be potable, and mixtures and preparations containing spirit - -	4 2 11	4 3 11	4 5 5	4 6 5

PART II.

1ST SCH.
—cont.ORDINARY RATES PAYABLE ON SPIRITS (NOT PRODUCED IN GREAT
BRITAIN OR NORTHERN IRELAND) AFTER 26TH APRIL, 1940.

1.	2.		3.	
Description of Spirits.	Preferential Rates.		Full Rates.	
	In Cask.	In Bottle.	In Cask.	In Bottle.
For every gallon computed at proof of—	£ s. d.	£ s. d.	£ s. d.	£ s. d.
Brandy or rum . . .	4 17 10	4 18 10	5 0 4	5 1 4
Imitation rum or geneva	4 17 11	4 18 11	5 0 5	5 1 5
Unsweetened spirits other than those already enumerated . . .	4 17 11	4 17 11	5 0 5	5 0 5
For every gallon of perfumed spirits . . .	7 16 0	7 17 0	8 0 0	8 1 0
For every gallon of liqueurs, cordials, mixtures, and other preparations in bottle entered in such manner as to indicate that the strength is not to be tested . . .	—	6 12 10	—	6 16 2
For every gallon computed at proof of spirits of any description not heretofore mentioned, including naphtha and methylic alcohol purified so as to be potable, and mixtures and preparations containing spirit . . .	4 17 11	4 18 11	5 0 5	5 1 5

1ST SCH.
—cont.

PART III.

ADDITIONAL CUSTOMS DUTIES IN RESPECT OF ALL IMMATURE SPIRITS.

1.	2.	3.
Description of Spirits.	Where the Spirits have been warehoused for a period of less than three but not less than two years.	Where the Spirits have not been warehoused, or have been warehoused for a period of less than two years.
For every gallon computed at proof of spirits of any description except perfumed spirits - - - -	<i>s. d.</i> 1 0	<i>s. d.</i> 1 6
For every gallon of liqueurs, cordials, mixtures and other preparations entered in such manner as to indicate that the strength is not to be tested - - - - -	1 4	2 0
For every gallon of perfumed spirits	1 7	2 5

Section 3.

SECOND SCHEDULE.

RATES OF DUTIES ON WINES PAYABLE FROM
11TH OCTOBER, 1939, TO 26TH JULY, 1940.

PART I.

NON-EMPIRE PRODUCTS.

Description of wine.	Rate of duty per gallon.
	<i>s. d.</i>
Not exceeding 25 degrees proof spirit - -	6 0
Exceeding 25 degrees proof spirit and not exceeding 42 degrees proof spirit - - -	12 0
For every degree or fraction of a degree above 42 degrees proof spirit, an additional duty -	1 0
Sparkling, an additional duty - - - -	12 6
Still, in bottle, an additional duty - - -	2 0

PART II.

EMPIRE PRODUCTS.

2ND SCH.
—cont.

Description of wine.	Rate of duty per gallon.
	<u>s. d.</u>
Not exceeding 27 degrees proof spirit - -	4 0
Exceeding 27 degrees proof spirit and not ex- ceeding 42 degrees proof spirit - - -	8 0
For every degree or fraction of a degree above 42 degrees proof spirit, an additional duty -	0 8
Sparkling, an additional duty - - -	6 3
Still, in bottle, an additional duty - - -	1 0

THIRD SCHEDULE.

Section 3.

RATES OF DUTIES ON WINES PAYABLE AFTER
26TH JULY, 1940.

PART I.

NON-EMPIRE PRODUCTS.

Description of wine.	Rate of duty per gallon.
	<u>s. d.</u>
Not exceeding 25 degrees proof spirit - -	8 0
Exceeding 25 degrees proof spirit and not ex- ceeding 42 degrees proof spirit - - -	16 0
For every degree or fraction of a degree above 42 degrees proof spirit, an additional duty -	1 4
Sparkling, an additional duty - - -	12 6
Still, in bottle, an additional duty - - -	2 0

PART II.

EMPIRE PRODUCTS.

Description of wine.	Rate of duty per gallon.
	<u>s. d.</u>
Not exceeding 27 degrees proof spirit - -	6 0
Exceeding 27 degrees proof spirit and not ex- ceeding 42 degrees proof spirit - - -	12 0
For every degree or fraction of a degree above 42 degrees proof spirit, an additional duty -	1 0
Sparkling, an additional duty - - -	6 3
Still, in bottle, an additional duty - - -	1 0

Section 5.

FOURTH SCHEDULE.

RATES OF DUTIES ON TOBACCO.

PART I.

DUTIES PAYABLE FROM 11TH OCTOBER, 1939, TO 26TH APRIL,
1940.

Description of tobacco.	Rate of duty per lb.	
	Non-Empire products.	Empire products.
	£ s. d.	£ s. d.
Unmanufactured tobacco, viz. :—		
containing 10 lbs. or more of moisture in every 100 lbs. weight thereof—		
unstripped - - - -	0 13 6	0 11 5½
stripped - - - -	0 13 6½	0 11 5½
containing less than 10 lbs. of moisture in every 100 lbs. weight thereof—		
unstripped - - - -	0 14 6	0 12 2½
stripped - - - -	0 14 6½	0 12 3¼
Manufactured tobacco, viz. :—		
cigars - - - -	1 2 1	0 18 2¼
cigarettes - - - -	0 18 7	0 15 5¼
Cavendish or Negrohead - -	0 17 9	0 14 9½
Cavendish or Negrohead manufactured in bond - -	0 16 0	0 13 4½
other manufactured tobacco -	0 16 0	0 13 4½
Snuff—		
containing more than 13 lbs. of moisture in every 100 lbs. weight thereof - - - -	0 15 4	0 12 10½
containing not more than 13 lbs. of moisture in every 100 lbs. weight thereof - - - -	0 17 9	0 14 9½
and so in proportion for any less quantity.		

PART II.

4TH SCH.
—cont.

DUTIES PAYABLE FROM 27TH APRIL TO 26TH JULY, 1940.

Description of tobacco.	Rate of duty per lb.	
	Non-Empire products.	Empire products.
Unmanufactured tobacco, viz. :—	£ s. d.	£ s. d.
containing 10 lbs. or more of moisture in every 100 lbs. weight thereof—		
unstripped - - - -	0 17 6	0 15 5½
stripped - - - -	0 17 6½	0 15 5½
containing less than 10 lbs. of moisture in every 100 lbs. weight thereof—		
unstripped - - - -	0 18 6	0 16 2½
stripped - - - -	0 18 6½	0 16 3½
Manufactured tobacco, viz. :—		
cigars - - - -	1 6 1	1 2 2½
cigarettes - - - -	1 2 7	0 19 5½
Cavendish or Negrohead - -	1 1 9	0 18 9½
Cavendish or Negrohead manu- factured in bond - - -	1 0 0	0 17 4½
other manufactured tobacco -	1 0 0	0 17 4½
Snuff—		
containing more than 13 lbs. of moisture in every 100 lbs. weight thereof - - - -	0 19 4	0 16 10½
containing not more than 13 lbs. of moisture in every 100 lbs. weight thereof - - - -	1 1 9	0 18 9½
and so in proportion for any less quantity.		

4TH SCH.
—cont.

PART III.

DUTIES PAYABLE AFTER 26TH JULY, 1940.

Description of tobacco.	Rate of duty per lb.	
	Non-Empire products.	Empire products.
	£ s. d.	£ s. d.
Unmanufactured tobacco, viz. :—		
containing 10 lbs. or more of moisture in every 100 lbs. weight thereof—		
unstripped - - - -	0 19 6	0 17 5½
stripped - - - -	0 19 6½	0 17 5½
containing less than 10 lbs. of moisture in every 100 lbs. weight thereof—		
unstripped - - - -	1 0 6	0 18 2½
stripped - - - -	1 0 6½	0 18 3¼
Manufactured tobacco, viz. :—		
cigars - - - -	1 8 1	1 4 2¼
cigarettes - - - -	1 4 7	1 1 5¼
Cavendish or Negrohead - -	1 3 9	1 0 9½
Cavendish or Negrohead manu- factured in bond - - -	1 2 0	0 19 4½
other manufactured tobacco -	1 2 0	0 19 4½
Snuff—		
containing more than 13 lbs. of moisture in every 100 lbs. weight thereof - - - -	1 1 4	0 18 10½
containing not more than 13 lbs. of moisture in every 100 lbs. weight thereof - - - -	1 3 9	1 0 9½
and so in proportion for any less quantity.		

FIFTH SCHEDULE.

Section 6.

RATES OF DUTIES ON MATCHES.

	£	s.	d.
For every 1,000 containers in which there are not more than 10 matches - - - - -	0	12	9
For every 1,000 containers in which there are more than 10 matches but not more than 30 matches -	1	18	3
For every 144 containers in which there are more than 30 matches but not more than 50 matches - -	0	9	0
For every 144 containers in which there are more than 50 matches :—			
For the first 50 matches - - - - -	0	9	0
For every additional 5 matches or part of 5 matches in excess of 50 matches - - -	0	0	11

and so in proportion for any less number of containers.

SIXTH SCHEDULE.

Section 9.

ENACTMENTS REPEALED.

PART I.

ENACTMENT REPEALED AS FROM 11TH OCTOBER, 1939.

Session and Chapter.	Short Title.	Extent of Repeal.
23 & 24 Geo. 5. c. 40.	The Isle of Man (Customs) Act, 1933.	Section eight.

PART II.

ENACTMENTS REPEALED AS FROM 27TH APRIL, 1940.

Session and Chapter.	Short Title.	Extent of Repeal.
20 & 21 Geo. 5. c. 42.	The Isle of Man (Customs) Act, 1930.	Section two and the Schedule.
22 & 23 Geo. 5. c. 41.	The Isle of Man (Customs) (No. 2) Act, 1932.	Section eight.
23 & 24 Geo. 5. c. 40.	The Isle of Man (Customs) Act, 1933.	Sections one and two and the First Schedule.
26 Geo. 5. & 1 Edw. 8. c. 45.	The Isle of Man (Customs) Act, 1936.	Section four.
1 & 2 Geo. 6. c. 68.	The Isle of Man (Customs) Act, 1938.	Section four.

PART III.

ENACTMENTS REPEALED AS FROM 27TH JULY, 1940.

Session and Chapter.	Short Title.	Extent of Repeal.
17 & 18 Geo. 5. c. 20.	The Isle of Man (Customs) Act, 1927.	Section one and the First Schedule.
20 & 21 Geo. 5. c. 1.	The Isle of Man (Customs) Act, 1929.	Section two.
23 & 24 Geo. 5. c. 40.	The Isle of Man (Customs) Act, 1933.	Section three.
2 & 3 Geo. 6. c. 53.	The Isle of Man (Customs) Act, 1939.	Section one and the First Schedule.

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